

VC067004 VC067004

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C09%2F17%2F2026

Source SHA-256: 4b819f8ef5b7bc53570c1801c0ad2d7bf4d9b45cc54ec37baa3d0042e06936a3

Case Number: VC067004 Hearing Date: September 17, 2026 Dept: R

#19

People of the State of California v. Jeanette Elizabeth Luna

CASE

NO.: VC067004

HEARING:

Thursday, September 17, 2026, at 9:30 AM

Defendant's

Motion to Vacate Verified Petition for Writ of Mandate, Set Aside Void

Disclosure is DENIED.

Defendant

to give Notice.

BACKGROUND

On March 16, 2018, the People of the State of California and the City of Norwalk brought an action against Jeanette Elizabeth Luna, Rena Adele Crawford, Ronald Aguilar, the testate and intestate successors of George E. Crawford and Beulah Crawford, believed to be deceased, and all persons claiming by, through, or under such person; all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the property located at 13137 Avonlea Ave. in Norwalk, California; and DOES I-50 inclusive. The Complaint for injunctive relief brought causes of action for (1) public nuisance, (2) municipal code violations, (3) state housing law violations (Health & Saf. Code § 17910 et seq.), and (4)

declaratory and injunctive relief/quiet title.

On February 6, 2020, the Court approved the sale of the property.

On February 27, 2020, the Court found Plaintiff to be the prevailing party and approved \$29,041.13 in attorney's fees and costs. On January 28, 2021, this Court dismissed the complaint as moot as the City of Norwalk obtained the relief requested.

On December 3, 2024 and January 13, 2025, this Court held an Order to Show Cause Re: 1. Whether or not the Receiver carried out his duties pursuant to Health and Safety Codes 17980.6 & 17980.7, 2. Did the City of Norwalk properly use the code Section, and 3. Did the City of Norwalk do its job, if the Receiver did not ; Order to Show Cause Re: re: Why the court should not set aside the Judgment. The Court took the matter under submission and on April 10, 2025, the Court ruled on the submitted matter, finding that Court's 6/24/24 Order to Show Cause is discharged, and the Motion to Vacate and Set Aside the Judgment is denied.

On June 2, 2026, Defendant filed the instant motion to vacate the verified petition for writ of mandate and set aside the void foreclosure.

Discussion

The Court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform the judgment or order direct, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (CCP § 473(d).)

Code of

Civil Procedure section 473.5(a) provides in relevant part:℥℥℥

℥℥

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him℥or her℥in℥the℥action, he℥or she℥may serve and file a notice of motion to set aside℥the℥default or default judgment and for leave to defend the action.℥ The℥notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a

default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

Additionally,

Code of Civ. Procedure § 663 provides in relevant part:

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.

To successfully make a motion pursuant to Code of Civ. Procedure § 663, a party must, within fifteen days of the date of mailing by the clerk of a notice of entry of judgment, file and serve a notice of its intention to make said motion “designating the grounds upon which the motion will be made, and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts, or in which the judgment or decree is not consistent with the special verdict” (Code of Civ. Procedure § 663a(a)(2).) Any “brief and accompanying documents, including affidavits in support of the motion,” must then be served and filed within ten days of the date on which the notice of intent is filed. (Code of Civ. Procedure §§ 659a, 663a(d).)

A motion for reconsideration must be “based upon new or different facts, circumstances, or law.” (Code of Civ. Procedure § 1008(a).) The moving party “shall state by affidavit... what new or different facts, circumstances, or law are claimed to be shown.” (Ibid.) The moving party must also show diligence and explain why he or she could not have presented the new or different facts or law earlier. (California Correctional Peace Officers Assn. v. Virga (2010) 181 Cal.App.4th 30, 46; Baldwin v. Home Sav. of America (1997) 59 Cal.App.4th 1192, 1200.)

2

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order." (Code of Civ. Procedure § 1008(a).) 2222

Here, Defendant argues that newly assembled record materially changes the factual foundation of this case. Defendant argues that relief is warranted under the Court's equitable powers and under Code of Civil Procedure sections 473, section 473.5 where applicable, section 663, section 1008 insofar as new facts are shown, and the Court's inherent authority to set aside orders affected by extrinsic fraud, concealment, mistake, or fraud on the court. A void order may be attacked at any time, and a court retains inherent equitable authority to vacate orders obtained through deception or through a materially false or incomplete presentation of decisive facts.

Defendant has filed this motion more than a year after her last attempt to set aside the judgment, which renders the request untimely pursuant to sections 473.5 (180 days), 663 (15 days), and 1008 (ten days.) Additionally, Defendant's motion lacks any authenticated evidence in support. Defendant's self-serving arguments regarding a "newly assembled record" do not justify the use of the Court's equitable powers under any of the statutes referenced by Defendant, especially as here where the Court fully litigated not only this case but also Defendant's prior attempt to set aside the judgment in 2024-2025.

Additionally, Defendant has not filed a proof of service for the motion and therefore has not satisfied the notice required for a noticed motion. (Cal. Rules of Court, rule 3.1300; Code of Civ. Proc. §§ 1013, 1013a.)

The motion is denied.